

1 HOUSE BILL NO. 165

2 INTRODUCED BY K. WALSH, E. TILLEMAN, C. SPRUNGER, G. KMETZ, Z. WIRTH

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING VEHICLE TRANSFER REQUIREMENTS; ALLOWING
5 A VEHICLE TRANSFER WITH AN AFFIDAVIT; PROHIBITING THE MOTOR VEHICLE DIVISION OF THE
6 DEPARTMENT OF JUSTICE FROM REQUIRING THE NOTARIZATION OF AN AFFIDAVIT; PROVIDING
7 RULEMAKING AUTHORITY; AND AMENDING SECTIONS 61-3-208, 61-3-216, 61-3-218, 61-3-220, 61-3-303,
8 AND 61-14-101, MCA."

9
10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

11
12 **Section 1.** Section 61-3-208, MCA, is amended to read:

13 **"61-3-208. Affidavit and bond for certificate of title.** (1) If an applicant for a certificate of title cannot
14 provide the department with the certificate of title that assigns the prior owner's interest in the motor vehicle,
15 trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile to the applicant,
16 the department may issue a certificate of title if subsection (2) is complied with.

17 (2) (a) The applicant shall submit an affidavit in a form prescribed by the department that must be
18 signed and sworn to ~~before an officer authorized to administer oaths and affirmations~~ in the manner provided
19 for in 1-6-105. The affidavit must accompany the application for the certificate of title and must:

20 (i) include the facts and circumstances through which the applicant acquired ownership and
21 possession of the motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft,
22 sailboat, or snowmobile;

23 (ii) disclose security interests, liens, or encumbrances that are known to the applicant and that are
24 outstanding against the motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft,
25 sailboat, or snowmobile; and

26 (iii) state that the applicant has the right to have a certificate of title issued.

27 (b) The application must satisfy one of the following conditions:

28 (i) The vehicle for which the application is being made must be a camper, off-highway vehicle,

1 motorboat, personal watercraft, sailboat 12 feet in length or longer, or snowmobile, and the loss of the
2 certificate of title must be established by the applicant to the department's satisfaction.

3 (ii) If application is being made for a certificate of title to a motor vehicle, trailer, semitrailer, or pole
4 trailer that is 30 years old or older or with a value of \$1,000 or less, the applicant shall establish the loss of the
5 certificate of title to the department's satisfaction and either provide evidence of the value of the motor vehicle,
6 trailer, semitrailer, or pole trailer based on the vehicle condition as determined by the applicable national
7 appraisal guide for the vehicle as of January 1 for the year in which the application is made or, if a national
8 appraisal guide is not available for a motor vehicle, trailer, semitrailer, or pole trailer, the applicant shall certify
9 the value of the motor vehicle, trailer, semitrailer, or pole trailer by providing the bill of sale and a notarized
10 document from the applicant attesting to the value.

11 (iii) If application is being made for a motor vehicle, trailer, semitrailer, or pole trailer that is less
12 than 30 years old with a value that exceeds \$1,000, the applicant shall provide a bond, in a form prescribed by
13 the department, issued by a surety company authorized to do business in this state, in an amount equal to the
14 value of the motor vehicle, trailer, semitrailer, or pole trailer for which the application is being made as
15 determined by the applicant, based on the vehicle condition as determined by the applicable national appraisal
16 guide for the motor vehicle, trailer, semitrailer, or pole trailer as of January 1 for the year in which the
17 application is made or, if a national appraisal guide is not available for a motor vehicle, trailer, semitrailer, or
18 pole trailer, the applicant shall certify the value of the motor vehicle, trailer, semitrailer, or pole trailer by
19 providing the bill of sale and a notarized document from the applicant attesting to the value. The bond is
20 conditioned to indemnify a prior owner, lienholder, subsequent purchaser, secured creditor, or encumbrancer of
21 the motor vehicle, trailer, semitrailer, or pole trailer and any respective successors in interest against expenses,
22 losses, or damages, including reasonable attorney fees, caused by the issuance of the certificate of title or by a
23 defect in or undisclosed security interest upon the right, title, and interest of the applicant in the motor vehicle,
24 trailer, semitrailer, or pole trailer.

25 (iv) If the application is being made for a motor vehicle sold without a manufacturer's certificate of
26 origin, the applicant shall:

27 (A) purchase and install all equipment required for the motor vehicle pursuant to Title 61, chapter
28 9, part 2;

(B) obtain an inspection by a law enforcement agent to verify that all required equipment is present and operational; and

(C) provide a bond, in a form prescribed by the department, issued by a surety company authorized to do business in this state, in an amount equal to the full retail price of the motor vehicle for which the application is being made. The bond is conditioned to indemnify a prior owner, lienholder, subsequent purchaser, secured creditor, or encumbrancer of the motor vehicle and any respective successors in interest against expenses, losses, or damages, including reasonable attorney fees, caused by the issuance of the certificate of title or by a defect in or undisclosed security interest upon the right, title, and interest of the applicant in the motor vehicle.

(3) Any interested person has a right of action to recover on the bond furnished under this section for a breach of its conditions, but the aggregate liability of the surety to all persons may not exceed the amount of the bond.

(4) Unless the department has been notified of a pending action to recover the bond furnished under this section, the department shall return the bond at the earlier of:

(a) 3 years from the date of issuance of the certificate of title; or

(b) the date of surrender of the valid certificate of title to the department if the motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile is no longer required to have a certificate of title in this state."

Section 2. Section 61-3-216, MCA, is amended to read:

"61-3-216. Certificates of title -- application -- contents -- issuance. (1) The owner of a motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle shall apply for a certificate of title on a form prescribed by the department or, if authorized by the department, in an electronic record provided by the department and made available to an authorized agent of the department or a county treasurer.

(2) The application for a certificate of title, upon completion, must include:

(a) the owner's name, Montana residence and, if different, mailing address, and customer identification number;

(b) a description of the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle, including, as available and pertinent to the vehicle:

(i) the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle make, model, manufacturer's designated model year of manufacture, vehicle identification number, and type of body and a description of motive power;

(ii) the odometer reading, if applicable, at the time of transfer of ownership;

(iii) the gross vehicle weight rating, gross vehicle weight, or shipping weight, if applicable, as determined by the manufacturer;

(iv) whether the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle was new or used at the time of transfer; and

(v) for a trailer operating intrastate, its declared weight;

(c) the date on which the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle was purchased by or was transferred to the applicant, the name and address of the person from whom the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle was acquired, and the names and addresses of any secured parties or lienholders for whom the applicant is acknowledging a voluntary security interest;

(d) any other information that the department requires to identify the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle and to enable the department to determine whether the owner is entitled to a certificate of title and to determine the existence of security interests in the motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle;

(e) if applicable, an odometer statement containing the information required in 61-3-206 or, if the title does not contain a space for the information, a separate document approved by the department that provides the same information that is required in 61-3-206; and

(f) a section that gives the applicant the option to direct the department, upon examination and review of the records and completion of the application process, to:

1 (i) issue a certificate of title as soon as possible; or

2 (ii) update the electronic record of title for the motor vehicle, trailer, semitrailer, pole trailer, travel
3 trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle, issue a
4 transaction summary receipt, and postpone the issuance of a certificate of a title until the motor vehicle, trailer,
5 semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-
6 highway vehicle owner submits a separate request for issuance of the certificate of title.

7 (3) The department may require a manufacturer's certificate of origin to be submitted with an
8 application for a certificate of title to a new motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper,
9 motorboat, personal watercraft, sailboat, snowmobile, or off-highway vehicle.

10 (4) Except as provided in 61-3-208 or subsection (4)(b) of this section, if the application is for a
11 certificate of title to a used motor vehicle, trailer, semitrailer, pole trailer, travel trailer, camper, motorboat,
12 personal watercraft, sailboat, snowmobile, or off-highway vehicle, the application must be:

13 (a) accompanied by a certificate of title that is properly assigned by the prior owner to the
14 applicant; or

15 (b) acknowledged by the prior owner if the prior owner's interest in the motor vehicle, trailer,
16 semitrailer, pole trailer, travel trailer, camper, motorboat, personal watercraft, sailboat, snowmobile, or off-
17 highway vehicle was assigned to the applicant by means of a transfer on the electronic record of title entered by
18 an authorized agent of the department or a county treasurer.

19 (5) If the application is for a certificate of title to a camper and if a certificate of title properly
20 assigned by the prior owner is not available, the application must be accompanied by a ~~notarized~~ bill of sale or
21 a conditional sales contract and an affidavit sworn in the manner provided for in 1-6-105 in which the affiant
22 affirms the validity of the bill of sale or conditional sales contract for the transaction.

23 (6) If the application is for a certificate of title to a motorboat, a personal watercraft, a sailboat that
24 is 12 feet in length or longer, or a snowmobile and a certificate of title properly assigned by the prior owner is
25 not available, the application must be accompanied by a ~~notarized~~ bill of sale and an affidavit sworn in the
26 manner provided for in 1-6-105 in which the affiant affirms the validity of the bill of sale for the transaction, an
27 invoice, the current registration receipt for the motorboat, personal watercraft, sailboat, or snowmobile, or a
28 certificate of number showing the transfer of ownership, which may be used to show the transfer of ownership

1 for a motorboat, personal watercraft, sailboat, or snowmobile from the immediate prior owner to the applicant."

2
3 **Section 3.** Section 61-3-218, MCA, is amended to read:

4 **"61-3-218. Certificate of title -- issuance -- delivery.** (1) Except as provided in subsection (2), if a
5 person who applied for a certificate of title also requested the issuance of the certificate of title as provided in
6 61-3-216(2)(f)(i), upon receipt of the application and all supporting documents and after an examination and
7 determination that the application is complete and regular, the department shall issue a certificate of title of the
8 motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile
9 and shall mail the certificate of title to the owner.

10 (2) If a person to whom a motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat,
11 personal watercraft, sailboat, or snowmobile was transferred has not satisfied the titling and registration
12 provisions of this chapter or, if applicable, the registration provisions of Title 23, chapter 2, part 5 or 6, within the
13 40-day period provided in ~~61-3-220(3)~~ 61-3-220(2) and the secured party or lienholder pays the title fee
14 required in 61-3-203, the department may mail a certificate of title to the secured party or lienholder upon
15 request of the secured party or lienholder.

16 (3) (a) A motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft,
17 sailboat, or snowmobile owner who requested the delayed issuance of a certificate of title under 61-3-
18 216(2)(f)(ii), in the initial application for a certificate of title, may submit a request for the issuance of the
19 certificate of title to the department, its authorized agent, or a county treasurer in a manner prescribed by the
20 department. Upon receipt, the department shall issue a certificate of title for the motor vehicle, trailer,
21 semitrailer, pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile and mail the certificate
22 of title to the owner.

23 (b) A title fee may not be demanded from the owner or collected by the department, its authorized
24 agent, or a county treasurer for a certificate of title requested or issued under subsection (3)(a)."

25
26 **Section 4.** Section 61-3-220, MCA, is amended to read:

27 **"61-3-220. Certificate of title -- voluntary transfer -- duties.** (1) Upon the voluntary transfer of any
28 interest in a motor vehicle, trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft, sailboat, or

1 snowmobile for which a certificate of title was issued under the provisions of this chapter, the owner whose
2 interest is to be transferred shall:

3 (a) authorize, in writing and on a form prescribed by the department, an authorized agent, or a
4 county treasurer, to enter the transfer of the owner's interest in the motor vehicle, trailer, semitrailer, pole trailer,
5 camper, motorboat, personal watercraft, sailboat, or snowmobile to the transferee on the electronic record of
6 title maintained under 61-3-101; or

7 (b) execute a transfer in the appropriate space provided on the certificate of title issued to the
8 owner and deliver the assigned certificate of title to:

9 (i) the transferee at the time of delivery of the motor vehicle, trailer, semitrailer, pole trailer,
10 camper, motorboat, personal watercraft, sailboat, or snowmobile; or

11 (ii) the department, its authorized agent, or a county treasurer if an application for a certificate of
12 title has been completed by the transferee and accompanies the assigned certificate of title.

13 ~~(2) — When transfer occurs between individuals, the transferor's signature on the certificate of title, or~~
14 ~~the form authorizing transfer of interest upon the electronic record of title, must be acknowledged before the~~
15 ~~county treasurer, a deputy county treasurer, an elected official authorized to acknowledge signatures, an~~
16 ~~employee or authorized agent of the department, or a notary public.~~

17 ~~(3)(2)~~ Except as provided in 61-4-111, the person to whom an interest in a motor vehicle has been
18 transferred shall:

19 (a) execute an application for a certificate of title in the space provided on the assigned certificate
20 of title or as prescribed by the department;

21 (b) request the return of the original title for vehicles 30 years or older, or whose certificates of title
22 were removed from department records pursuant to 61-3-227, on a form prescribed by the department; and

23 (c) within 40 days after the interest in the motor vehicle, trailer, semitrailer, pole trailer, camper,
24 motorboat, personal watercraft, sailboat, or snowmobile was transferred to the person, either:

25 (i) apply for a certificate of title under 61-3-216 and register the motor vehicle, trailer, semitrailer,
26 pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile under 61-3-303; or

27 (ii) subject to the limitations of 61-3-312, register the motor vehicle, trailer, semitrailer, pole trailer,
28 camper, motorboat, personal watercraft, sailboat, or snowmobile without the surrender of a previously assigned

1 certificate of title and application for certificate of title under 61-3-303.

2 ~~(4)~~(3) If the person to whom an interest in a motor vehicle, trailer, semitrailer, pole trailer, camper,
3 motorboat, personal watercraft, sailboat, or snowmobile has been transferred fails to comply with the
4 requirements described in subsection ~~(3)~~(2) within the 40-day grace period, a late penalty of \$10 must be
5 imposed against the transferee. The penalty must be paid before the transferee registers the motor vehicle,
6 trailer, semitrailer, pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile in this state,
7 with or without the surrender of an assigned certificate of title. The penalty is in addition to the fees otherwise
8 provided by law.

9 ~~(5)~~(4) If the transferee does not comply with the requirements of subsection ~~(3)~~ (2) within the 40-day
10 grace period, a secured party or lienholder of record may pay the fees for the transfer of title and for filing a
11 voluntary security interest or lien. The secured party or lienholder is not liable for the late penalty imposed in
12 subsection ~~(4)~~(3) or for registration fees, taxes, or fees in lieu of tax on the motor vehicle, trailer, semitrailer,
13 pole trailer, camper, motorboat, personal watercraft, sailboat, or snowmobile.

14 ~~(6)~~(5) The department may adopt rules for the transfer of vehicles in this section."
15

16 **Section 5.** Section 61-3-303, MCA, is amended to read:

17 **"61-3-303. Original registration -- process -- fees.** (1) Except as provided in 61-3-324, a Montana
18 resident who is an owner of a motor vehicle, trailer, semitrailer, or pole trailer operated or driven upon the public
19 highways of this state shall register the motor vehicle, trailer, semitrailer, or pole trailer in the county where the
20 registering owner is domiciled. A nonresident who has an interest in real property in Montana may register in
21 the county where the real property is located a motor vehicle, trailer, semitrailer, or pole trailer operated or
22 driven upon the public highways of this state. A person serving or retired from serving aboard the USS Montana
23 may register by mail in Lewis and Clark County using forms prescribed by the department.

24 (2) A Montana resident who is an owner of a motor vehicle, trailer, semitrailer, or pole trailer with
25 co-owners, one or more of whom are not Montana residents, may register the vehicle regardless of the fact that
26 one or more of the co-owners would otherwise not qualify to register the vehicle under subsection (1) if the
27 registering Montana resident is:

28 (a) an individual human being; and

(b) the principal operator of, and in whom is vested the right of possession and control of, the vehicle.

(3) Except as provided in subsection (4), the county treasurer or an authorized agent shall register any vehicle for which:

(a) as of the date that the motor vehicle, trailer, semitrailer, or pole trailer is to be registered, an owner delivers an application for a certificate of title to the department, an authorized agent, or a county treasurer; or

(b) the county treasurer or an authorized agent confirms that the department has an electronic record of title for the motor vehicle, trailer, semitrailer, or pole trailer as provided under 61-3-101.

(4) (a) A county treasurer or an authorized agent may register a motor vehicle, trailer, semitrailer, or pole trailer for which a certificate of title and registration were issued in another jurisdiction and for which registration is required under 61-3-701 after the county treasurer or the authorized agent examines the current out-of-jurisdiction registration certificate or receipt and receives payment of the fees required in 61-3-701. The county treasurer or an authorized agent may ask the motor vehicle, trailer, semitrailer, or pole trailer owner to provide additional information, prescribed by the department, to ensure that the electronic record of registration maintained by the department is complete.

(b) A county treasurer or an authorized agent shall collect fees pursuant to 61-3-203 and ~~61-3-220(4)~~ 61-3-220(3) and issue a 90-day temporary registration permit pursuant to 61-3-224 for a motor vehicle, trailer, semitrailer, pole trailer, motorboat, sailboat that is 12 feet in length or longer, snowmobile, or off-highway vehicle for which the new owner cannot, due to circumstances beyond the new owner's control, surrender a previously assigned certificate of title. The new owner shall request the 90-day temporary registration permit from the authorized agent or county treasurer that originally issued the temporary registration permit.

(c) A person serving or retired from serving aboard the USS Montana shall include in an application for a certificate of title, in a manner prescribed by the department, proof that the person has current orders to serve or has previously served aboard the USS Montana.

(5) Upon registering a motor vehicle, trailer, semitrailer, or pole trailer for the first time in this state, the county treasurer or an authorized agent shall:

(a) update the electronic record of title, if any, maintained for the vehicle by the department under

1 61-3-101;

2 (b) assign a registration period for the vehicle under 61-3-311;

3 (c) determine the vehicle's age, if required, under 61-3-501;

4 (d) determine the amount of fees, including local option taxes or fees, to be paid under subsection
5 (6); and

6 (e) assign and issue license plates for the vehicle under 61-3-331.

7 (6) Unless otherwise provided by law, a person registering a motor vehicle shall pay to the county
8 treasurer or an authorized agent:

9 (a) the fees in lieu of tax or registration fees as required for:

10 (i) a light vehicle under 61-3-321 or 61-3-562, in addition to, if applicable, any local option tax or
11 fee under 61-3-537 or 61-3-570;

12 (ii) a motor home under 61-3-321;

13 (iii) a travel trailer under 61-3-321;

14 (iv) a motorcycle or quadricycle under 61-3-321;

15 (v) a bus, a truck having a manufacturer's rated capacity of more than 1 ton, or a truck tractor
16 under 61-3-321 and 61-3-529; or

17 (vi) a trailer under 61-3-321;

18 (b) a donation of \$1 or more if the person indicates that the person wishes to donate to promote
19 awareness and education efforts for procurement of organ and tissue donations in Montana to favorably impact
20 anatomical gifts;

21 (c) a donation of \$1 or more if the person indicates that the person wishes to donate to promote
22 education on, support for, and awareness of traumatic brain injury; and

23 (d) a donation of \$1 or more if the person indicates that the person wishes to donate to a program
24 supporting cancer screening.

25 (7) The county treasurer or an authorized agent may not issue a registration receipt or license
26 plates for the motor vehicle, trailer, semitrailer, or pole trailer to the owner unless the owner makes the
27 payments required by subsection (6).

28 (8) The department may make full and complete investigation of the registration status of the motor

1 vehicle, trailer, semitrailer, or pole trailer. A person seeking to register a motor vehicle, trailer, semitrailer, or
2 pole trailer under this section shall provide additional information to support the registration to the department if
3 requested.

4 (9) Revenue that accrues from the voluntary donations provided for in subsection (6) must be
5 forwarded by the respective county treasurer or an authorized agent to the department for deposit as follows:

6 (a) in the state special revenue fund to the credit of an account established by the department of
7 labor and industry to support activities related to awareness and education efforts for procurement of organ and
8 tissue donations for anatomical gifts if the revenue is from the donation provided for in subsection (6)(b);

9 (b) to the credit of the account established in 2-15-2218 if the revenue is from the donation
10 provided for in subsection (6)(c); and

11 (c) to the credit of the special revenue account established in 33-22-2104 if the revenue is from the
12 donation provided for in subsection (6)(d).

13 (10) (a) Except as provided in subsection (10)(b), the fees in lieu of tax, taxes, and fees imposed on
14 or collected from the registration of a travel trailer, motorcycle, or quadricycle or a trailer, semitrailer, or pole
15 trailer that has a declared weight of less than 26,000 pounds are required to be paid only once during the time
16 that the travel trailer, motorcycle, quadricycle, trailer, semitrailer, or pole trailer is owned by the same person
17 who registered the travel trailer, motorcycle, quadricycle, trailer, semitrailer, or pole trailer. When registered, a
18 travel trailer, motorcycle, quadricycle, trailer, semitrailer, or pole trailer is registered permanently unless
19 ownership is transferred or unless it was registered under 61-3-701.

20 (b) Whenever ownership of a travel trailer, motorcycle, quadricycle, trailer, semitrailer, or pole
21 trailer is transferred, the new owner is required to register the travel trailer, motorcycle, quadricycle, trailer,
22 semitrailer, or pole trailer as if it were being registered for the first time, including paying all of the required fees
23 in lieu of tax, taxes, and fees.

24 (11) The department, an authorized agent of the department, or a county treasurer shall use the
25 online motor vehicle liability insurance verification system provided in 61-6-157 to verify that the vehicle owner
26 has complied with the requirements of 61-6-301."

27
28 **Section 6.** Section 61-14-101, MCA, is amended to read:

1 **"61-14-101. Rulemaking authority -- vehicle services.** (1) The department shall adopt rules for the
2 registration of motor vehicles, including:

3 (a) (i) simultaneous registration of multiple motor vehicles that have common ownership;

4 (ii) defining the term "fleet" as used in 61-3-318 and 61-3-323; and

5 (iii) the issuance of fleet series license plates provided for in 61-3-325;

6 (b) verification of compliance with 61-6-301 before registering or renewing a registration of a
7 vehicle or issuing new license plates required by 61-3-332(3);

8 (c) devising a method to place license plates on the 5-year reissuance cycle to minimize
9 production peaks and valleys;

10 (d) early registration renewals when an owner of a motor vehicle presents extenuating
11 circumstances; and

12 (e) automated mailing of license plates by the department or its authorized agent, including an
13 agent under contract with the department pursuant to 61-3-338.

14 (2) The department shall adopt rules to procure compliance with all of the laws of the state
15 regulating the issuance of motor vehicle, trailer, semitrailer, or pole trailer licenses relating to the use and
16 operation of motor vehicles, trailers, semitrailers, or pole trailers before issuing the lettered license plates
17 pursuant to 61-3-423.

18 (3) The department may adopt rules to establish vehicle brands or carried-forward brands
19 according to 61-3-202.

20 (4) The department may adopt rules governing affidavit and bond for certificate of title pursuant to
21 61-3-208 but may not require notarization of an affidavit sworn in the manner provided for in 1-6-105.

22 (5) The department may adopt rules for the implementation and administration of temporary
23 registration permits, pursuant to 61-3-224, including issuance to:

24 (a) a Montana resident who acquires a new or used motor vehicle, trailer, semitrailer, pole trailer,
25 motorboat, sailboat that is 12 feet or longer, snowmobile, or off-highway vehicle for operation of the vehicle or
26 vessel prior to titling and registration of the vehicle or vessel under Title 61, chapter 3;

27 (b) the owner of a salvage vehicle or a vehicle requiring a state-assigned vehicle identification
28 number to move the vehicle to and from a designated inspection site prior to applying for a new certificate of

1 title under 61-3-107 or 61-3-212;

2 (c) the owner of a motor vehicle, trailer, semitrailer, or pole trailer registered in this state for
3 operation of the vehicle while awaiting production and receipt of special or duplicate license plates ordered for a
4 vehicle under Title 61, chapter 3;

5 (d) a nonresident of this state who acquires a motor vehicle, trailer, semitrailer, or pole trailer in this
6 state for operation of the vehicle prior to its titling and registration under the laws of the nonresident's
7 jurisdiction of residence;

8 (e) a dealer licensed in another state who brings a motor vehicle or trailer designed and used to
9 apply fertilizer to agricultural lands into the state for special demonstration in this state;

10 (f) a financial institution located in Montana for a prospective purchaser to demonstrate a motor
11 vehicle that the financial institution has obtained following repossession;

12 (g) an insurer or its agent to move a motor vehicle or trailer to auction following acquisition of the
13 vehicle by the insurer as a result of the settlement of an insurance claim;

14 (h) a nonresident owner to temporarily operate a quadricycle or motorcycle designed for off-road
15 recreational use on the highways of this state when the quadricycle or motorcycle designed for off-road
16 recreational use is equipped for use on the highways as prescribed in Title 61, chapter 9, but the quadricycle or
17 motorcycle designated for off-road recreational use is not registered or is only registered for off-road use in the
18 nonresident's home state; or

19 (i) a new owner of a motor vehicle, trailer, semitrailer, pole trailer, motorboat, sailboat that is 12
20 feet in length or longer, snowmobile, or off-highway vehicle for which the new owner cannot, due to
21 circumstances beyond the new owner's control, surrender a previously assigned certification of title.

22 (6) The department may adopt rules for the assessment and collection of registration fees on light
23 vehicles under 61-3-321 and 61-3-562, including the proration of fees under 61-3-520 and criteria for
24 determining the motor vehicle's age.

25 (7) The department may adopt rules for imposing and collecting fees in lieu of tax, including:

26 (a) the proration of fees in lieu of tax under 61-3-520 on buses, trucks having a manufacturer's
27 rated capacity of more than 1 ton, and truck tractors;

28 (b) criteria for determining the motor vehicle's age; and

1 (c) criteria for determining the manufacturer's rated capacity.

2 (8) The department may adopt rules, pursuant to Title 61, chapter 3, for the administration of fees
3 for trailers, semitrailers, and pole trailers, including criteria for determining a trailer's age and weight.

4 (9) The department shall adopt rules for generic specialty license plates issued pursuant to 61-3-
5 472 through 61-3-481, including:

6 (a) the minimum and maximum number of characters that a generic specialty license plate may
7 display;

8 (b) the general placement of the sponsor's name, identifying phrase, and graphic; and

9 (c) any specifications or limitations on the use or choice of color or detail in the sponsor's graphic
10 design.

11 (10) The department may adopt rules governing dealers pursuant to the provisions of Title 61,
12 chapter 4, including:

13 (a) the application and issuance of dealer licenses, including the qualifications of dealers, and the
14 staggering of expiration dates pursuant to 61-4-101;

15 (b) the issuance of dealer, demonstrator, loaner, courtesy, and transit plates pursuant to 61-4-102,
16 61-4-128 through 61-4-130, 61-4-301, 61-4-307, and 61-4-308;

17 (c) the application and process for renewing a dealer license pursuant to 61-4-124; and

18 (d) governing the regulation of persons required to be licensed pursuant to Title 61, chapter 4, part
19 2.

20 (11) The department may adopt rules for local option tax appeals pursuant to 15-15-201.

21 (12) The department may adopt rules to implement any other provision of this title."

22 - END -